

WRITTEN SUBMISSIONS · 25 JUN 1998

Written submissions in summary proceedings — McDonald's

TYPE	DATE	PARTIES
Pleadings / procedural document	25 Jun 1998	From McDonald's France

SUMMARY SHEET

Summary proceedings written submissions — McDonald's France · 25 June 1998

Overview: written submissions filed on behalf of McDonald's France before the First President of the Paris Court of Appeal, in response to the application to suspend the provisional enforcement of the judgment of the Paris Commercial Court of 18 May 1998.

Key points

Collorafi and the companies SEBOL, B et O and LES PINS had applied to the First President by writ of summons of 29 May 1998 to suspend provisional enforcement, then asked to be reinstated in the businesses. McDonald's argues that these claims are inadmissible and unfounded: the businesses belong to it, the lease-management (location-gérance) having been granted to Collorafi. As the fees were not paid, the termination clause took effect and the termination occurred automatically on 2 January 1998; the restaurants were handed back on 10 June 1998, the enforcement judge of the Grasse Regional Court (TGI) having refused the period of grace. McDonald's invokes article 524 of the NCPC and disputes any manifestly excessive consequence, having provided the required bank guarantees.

Significance

A document in the part of the case concerning suspension of provisional enforcement before the Court of Appeal: in it McDonald's asks for the opposing application to be rejected and for the judgment of 18 May 1998 to have full effect.

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Source: bernardcollorafi.org/en/documents/summary-proceedings-submissions-paris-court-of-appeal-mcdonalds-provisional-enforcement-1998/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.